DIFC Courts Rules of Court Order No. 1 of 2017 in Respect of Legal Representation in Hearings Before the Small Claims Tribunal of the DIFC Courts

JANUARY 16, 2017 COURT ADMINISTRATIVE ORDERS

DIFC Courts (/glossary/difc-courts/) Rules (/glossary/rules/) of Court (/glossary/court/) Order No. 1 of 2017 in Respect of Legal Representation in Hearings Before the Small Claims Tribunal (/glossary/tribunal/) of the DIFC Courts

I, Michael Hwang, Chief Justice (/glossary/chief-justice/) of the DIFC Courts, make the following Order: In exercise of the powers conferred on me by Article 8(3)(a) of Dubai Law No. 9 of 2004, as amended; and after having reviewed:

Dubai Law No. 9 of 2004 in respect of the DIFC (/glossary/difc/), as amended; Dubai Law No. 12 of 2004 in respect of the Judicial Authority at the DIFC, as amended; DIFC Law No. 10 of 2004 in respect of the DIFC Courts Law; and

DIFC Order No. 1 of 2014 in respect of the Rules of the DIFC Courts

1. This Order may be cited as the Rules of Court Order No. 1 of 2017.

2. The Rules of the DIFC Courts (RDC) Part 53.52 and 53.53 shall be amended to read as follows:

“Representation at a hearing

53.52

Natural persons

(1) Unless the SCT Judge (/glossary/judge/) orders otherwise, a party should present his own case at a hearing.

(2) A party may be represented at the hearing by a non-lawyer or lawyer[1] only after obtaining permission from the SCT which is to be given where it appears to the SCT on reasonable grounds that it is necessary in the circumstances.

(3) If a party is allowed to be represented by a lawyer, or in house Counsel as permitted under Rule 53.53, the opposing party shall be informed and given the opportunity to be represented at the hearing.

(4) Parties' attention is drawn to RDC Part 53.70.

53.53

Corporate parties

Any of its full-time officers or employees (including in house Counsel) may represent a corporate party." [2]

3. This shall first be reflected in the online version of the RDC, and subsequently in hardcopies due for publication in 2017.

4. The amended Rules will come into force on 17 January 2017.

Michael Hwang Chief Justice of the DIFC Courts

Issued: 16 January 2017

[1] "Lawyer" in the context of SCT proceedings shall be taken to include DIFC registered practitioners (/glossary/practitioner/) as well as Mckenzie friends, which encompasses individuals who may be legally qualified but not licensed to practice before the DIFC Courts.

[2] Where a request is made for legal representation at an SCT hearing (as provided for under RDC 53.52 and 53.53), the SCT Registry (/glossary/registry/) shall be given 3 working days' notice of the same, so as to enable them to inform the other side accordingly.